

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

**BRIAN FRITCH, A Permanent Certificated Employee, Moving
Party,**

and

LOS ANGELES UNIFIED SCHOOL DISTRICT,

Responding Party

OAH No. 2025030984

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION (Ed. Code, § 44939, subd. (c)(4))**

Abraham M. Levy, Administrative Law Judge, State of California, Office of
Administrative Hearings, heard this matter on April 11, 2025, by videoconference.

Jason Wojciechowski, Attorney at Law, Bush Gottlieb, represented moving party,
Brian Fritch.

Kelly Kim, Associate General Counsel II, Office of the General Counsel,
represented responding party, Los Angeles Unified School District (District).

PROCEDURAL HISTORY

On February 19, 2025, the District issued a statement of charges against Mr. Fritch alleging he engaged in immoral conduct with respect to his 12th grade student Sadia O., pursuant to Education Code section 44932, subdivision (a)(1). The statement of charges seeks Mr. Fritch's dismissal and his immediate suspension without pay pursuant to Education Code sections 44932 and 44939. The statement of charges and notice of immediate suspension were served upon Mr. Fritch on February 19, 2025. Based upon the charge of immoral conduct, Mr. Fritch is on immediate suspension without pay pursuant to Education Code section 44939.

On March 25, 2025, Mr. Fritch filed this motion for immediate reversal of his suspension without pay, pursuant to Education Code section 44939, subdivision (c)(1). Mr. Fritch argues that the District has not alleged sufficient facts to constitute immoral conduct to place him on immediate unpaid status. Mr. Fritch asks for an order reversing his suspension without pay.

DISCUSSION

Education Code section 44939, subdivision (b), provides, in part, that a school district may immediately suspend a permanent employee who has been charged "with immoral conduct, conviction of a felony or of any crime involving moral turpitude, with incompetency due to mental disability, with willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing school district, or with violation of (Education Code) [s]ection 51530."

Education Code section 44939, subdivision (c)(1), authorizes the employee to seek review of the order of suspension by motion to the Office of Administrative Hearings. This section limits the review of a motion to immediately reverse a suspension to "a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

The parties' written submissions and their oral argument have been considered. The facts as alleged constitute a basis for Mr. Fritch's immediate suspension under Education Code section 44939, subdivision (b), based on immoral conduct. California Courts have defined immoral conduct as:

that which is hostile to the welfare of the general public and contrary to good morals . . . [including] conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, [*sic*] flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Palo Verde Unified Sch. Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 972, citing *Board of Education of San Francisco Unified School District v. Weiland* (1960) 179 Cal.App.2d 808, 811.)

If proven true, Mr. Fritch's conduct towards his student S ■■■ O. meets this definition of immoral conduct. Mr. Fritch inappropriately communicated with S ■■■ O. numerous times suggesting he was grooming her, as the District argues. Among the numerous factual assertions, Mr. Fritch told her he "just wanted to see her"; he held

her hand; he touched her thigh, shoulders, and lower back; he asked about her personal life including her plans for the future, her past, her current dating life, if she was sexually active, and who she would date, considering she is a Muslim; he told her he wanted to say something to her but couldn't until she turns eighteen years old; he whispered, "I love you" in her ear; he offered her money for "grad-night"; he shared his personal life with her, telling her he had cheated on his girlfriends in the past; he told her he wanted to see her after graduation, and that there were a lot of things he felt for her; he communicated with her during the day and night; he engaged her on social media; he offered her an intern job with his wife and him and asked her to move in with his family during this internship. Taken together, these facts, if true, are shocking and contrary to the behavior expected of a teacher. ("A teacher . . . in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the (students) coming under (his) care and protection.'" (*Board of Trustees v. Stubblefield* (1971) 16 Cal.App.3d 820, at 824 citing *Board of Education v. Swan* (1953) 41 Cal.2d 546, 552.))

ORDER

The motion for immediate reversal of the suspension of Brian Fritch is denied.

DATE: April 15, 2025


Abraham M. Levy (Apr 15, 2025 15:26 PDT)

ABRAHAM M. LEVY

Administrative Law Judge

Office of Administrative Hearings